

Andhra Pradesh Excise (Import, Export and Transport of Indian Liquor and Foreign Liquor-Permits) Rules, 2005

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State of Andhra Pradesh - Act

Andhra Pradesh Excise (Import, Export and Transport of Indian Liquor and Foreign Liquor-Permits) Rules, 2005

ANDHRA PRADESH

India

Andhra Pradesh Excise (Import, Export and Transport of Indian Liquor and Foreign Liquor-Permits) Rules, 2005

Rule

ANDHRA-PRADESH-EXCISE-IMPORT-EXPORT-AND-TRANSPORT-OF-INDIAN-LIQUOR-AND-FOREIGN-LIQUOR-PERMITTS-RULES-2005 of 2005

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Andhra Pradesh Excise (Import, Export and Transport of Indian Liquor and Foreign Liquor-Permits) Rules, 2005

Published vide Notification No. G.O.Ms. No. 996. Revenue (Extraordinary-2.), 24.5.2005, R.s. to Part 2 (Extraordinary) A.P. Gazette dated 24.5.2005

Last Updated 23rd October, 2019

G.O.Ms. No. 996. - In exercise of the powers conferred by Section 72 read with Sections 9, 10, 11, 12, 17, 21, 22 and 28 of the Andhra Pradesh Excise Act, 1968 (Act 17 of 1968) and Ordinance 5 of 2005. The Governor of Andhra Pradesh hereby makes the following Rules:

1.

Short title extent and commencement.

(1)

These rules may be called the Andhra Pradesh Excise (Import, Export and Transport of Indian Liquor and Foreign Liquor-Permits) Rules, 2005

(2)

They shall extend to all the areas where the Andhra Pradesh Excise Act, 1968 is in force.

(3)

They shall come into force at once.

2.

Application.

- These rules shall apply for the import, export and transport of Indian Liquor and Foreign Liquor but not for their manufacture, production, compounding, blending, rectifying, flavouring, colouring fortifying, diluting, bottling or sale.

3.

Definitions.

- In these Rules unless the context, otherwise requires:-

(a)

"Act" means the Andhra Pradesh Excise Act, 1968:

(b)

"Distillery Permit" or "Brewery Permit" means a permit issued by the Distillery Officer or Brewery Officer, as the case may be, for release of the Indian Liquor or Beer there from;

(c)

"Foreign Liquor" includes every liquor imported into India other than Indian Liquor:

(d)

"Form" means a form appended to these rules:

(e)

"Indian Liquor" means liquor produced, manufactured or compounded in India after the manner of Gin, Brandy, Whisky or Rum imported from Foreign Countries and includes, Wine, Beer. Milk punch and other liquors consisting of or containing any such spirits but does not include 'Foreign Liquor'

(f)

"licence" means a licence granted under the Act.

(g)

"licensee" means holder of such licence:

(h)

"Permit" means a permit issued under these rules and includes a pass and an authorisation:

(i)

"verification" means -

(i)

examining the seals of the bottles, containers or other receptacles forming the consignment of intoxicants to verify that they are not tampered with during transit:

(ii)

ascertaining that the number of bottles and make thereof containers and other receptacles tally with those, shown on that permit and that the Excise Adhesive Lables are affixed on each and every bottle of Indian Liquor and Foreign Liquor and the serial numbers of the Excise Adhesive Labels so affixed tally with those noted in the permit.

(iii)

ascertaining that the quantity of Indian Liquor or Foreign Liquor transported tallies with the quantity mentioned in the permit and in the case of spirit, examining the contents with a hydrometer by drawing samples from the bottles containers or other receptacles in order to find out that the strength of the spirit corresponds to that shown in the permit: and

(iv)

satisfying that the excise revenue and cost of excise adhesive lables required to be paid under the rules have been

correctly lived and paid and the word 'verified' shall be construed accordingly;

(j)

"Excise Adhesive Label" means the label designed and approved by printed and supplied by under the supervision and control of the Commissioner of Prohibition and Excise, from time to time in different forms for the purpose of its affixture to sealed bottles of different varieties and sizes containing liquor.

(k)

"through transport permit" means the permit issued under sub-rule 5(i) of Rule 16 for the transport from a place outside the State to any other place outside it through the intervening area of the State whether by way of consignment or otherwise.

4.

Application for an import permit.

(1)

Indian Liquor shall be permitted to be imported in bottles affixed with only those labels which have been approved by the Commissioner of Prohibition and Excise, Andhra Pradesh in accordance with these Rules.

(2)

Manufacturers of Indian Liquor or Brewery of other States,- Military Canteen Stores (In-house Storage and Supply) Licence (in Form CS-3 and the Andhra Pradesh Beverages Corporation Limited, under these rules only shall be eligible to apply for approval of such labels under these rules. The application shall be in Form L-1A duly affixed with court fee stamp of requisite value as per the provisions of the Indian Stamp Act, 1899 and shall be enclosed with fifty copies of each variety of label sought to be approved, and challan of remittance, of a non-refundable fee of Rs. 2,00,000/- in respect of brands of Indian liquor whose basic price is upto Rs. 700/- and of Rs. 50,000/- (Rupees Fifty Thousand only) in respect of brands of Indian Liquor, whose basic price is above Rs. 700/- for each such variety of label, sought to be approved under appropriate head of account at any Government Treasury in the State. In case of Beer the fee so payable shall be Rs. 2,00,000/- for each variety of label. The applicant should also get the label re-approved for each excise year by paying fee of Rs. 2,00,000/- in respect of brands of Indian Liquor, whose basic price is upto Rs. 700/- and Rs. 50,000/- (Rupees Fifty thousand only) in respect of brands of Indian Liquor, whose basic price is above Rs. 700/- for each such variety of label. In case of Beer the fee so payable for re-approval shall be Rs. 2,00,000/- for each variety of label. The format of the label submitted for such approval shall contain the following:

(a)

Name and Address of Manufacturer

(b)

Batch Number, Month and Year of Manufacturer

(c)

Net Contents

(d)

Proof Strength

(e)

Kind of Liquor

(f)

Inscription 'for sale in Andhra Pradesh Only'

(g)

Name and Address of the person doing rectification, blending, compounding, reduction, flavoring, colouring, bottling and the like if such person is other than the manufacturer.

(h)

Maximum Retail Price

(i)

M.R.P. () shall be depicted prominently on a separate band on the top of the label.

(j)

Inscription "Consumption of liquor is injurious to health".

Provided further that the Label fee once remitted shall not be refunded or adjusted for any reason including non-acceptance of tender by the A.P. Beverages Corporation Limited or non-issue of purchase order or non-approval of

label or non-issue of Import Permits, when once the label was duly approved and registered

Provided further that the label approved fee shall be Rs. 10,000/- in case of Wine, either Grape-based or other fruit-based which should not contain more than 42% proof spirit. The label shall be re-approved for each Excise year after collecting the same fee applicable for approval.

Provided also that the Supplier of Indian Liquor and Wine be required to affix an additional Label on the Bottle with the details of brand name and inscription of "Specially packed for Andhra Pradesh State Only" in Telugu language also of the prescribed font size as approved by the Commissioner of Prohibition and Excise.

(3)

The Commissioner of Prohibition and Excise, on receipt of such application and after causing an enquiry, if necessary, and on being satisfied that there is no objection to approve the label and that the condition laid down in sub-rule (2) have been fulfilled may approve the label in Form L-1B. After approval, one copy shall be returned to the applicant and one copy shall be sent to the Andhra Pradesh Beverages Corporation Limited and one copy shall be retained for further use by the Commissioner of Prohibition and Excise in his Office. The imports shall be done only through the Andhra Pradesh Beverages Corporation Limited which has been vested with exclusive privilege of import:

Provided that canteen stores department shall import Indian Liquor and Foreign Liquor after fulfilling the conditions laid down in these rules.

(4)

The application for an import permit shall be in Form L-I and shall bear a court fee stamp of the requisite value as per the provisions of the Indian Stamp Act, 1899.

4A.

[Import of Foreign Liquor.

[Inserted By Notification No. G.O.Ms. No. 968, dated 10.7.2007 (w.e.f. 24.5.2005).]

(1)

The Andhra Pradesh Beverage Corporation shall apply to the Commissioner of Prohibition and Excise for Import of Foreign Liquor in accordance with the requirement of the Licensees in the state from time to time:

"Provided that the canteen stores department may apply to the Commissioner directly for grant of Import permit in respect of Foreign Liquor.

(2)

No import permit as specified under sub-rule (1) above shall be granted unless,

(i)

Countervailing duty and import fee as prescribed is paid

(ii)

Sticker as specified in sub-rule (3) is approved by the Commissioner

(iii)

A Challan for the cost of EALs in enclosed.

(3)

(i)

Every bottle of Foreign Liquor imported into the State shall bear a sticker.

(ii)

The Andhra Pradesh Beverages Corporation shall submit to the Commissioner for approval 10 copies of each variety of sticker in respect of Foreign Liquor of the same variety of one origin sought to be imported along with challar of Rs. 10,000/- towards fee for approval.

(iii)

The sticker shall contain the following:

(a)

Name and address of the import-export license holder

(b)

License/authorization no.

(c)

Name of the brand.

(d)

Inscription "for sale in Andhra Pradesh only"

(e)

Maximum Retail Price (as indicated by APBCL)

(f)

Inscription "consumption of liquor is injurious to health"]

5.

Procedure for payment of Excise Duty and grant of an Import permit.

(1)

(a)

On receipt of an application in Form L-I any Prohibition and Excise Officer not below the rank of the Assistant Prohibition and Excise Superintendent specially authorised by Commissioner may after such enquiry as he may consider necessary and on being satisfied that there is no objection to issue import permit applied for, issue the permit, subject to the following conditions, namely:-

(i)

That the applicant has paid and produced the challan in original in token of having credited into the Government Treasury the entire countervailing duty leviable on the liquor to be imported at the rates in force.

(ii)

that the applicant has paid and produced the challan in original in token of having credited into the Government Treasury import fee at the following rates:

(a)

Beer, Cider, Ale, Stout, Porter or other Fermented Liquor usually from Malt, Grape, Plain, High Bouquet Spirits, etc. or Foreign Liquor - Two rupees per bulk litre.

(b)

Any other [Indian Made Foreign Liquor]

[Substituted 'Indian Liquor' by Notification No. G.O.Ms. No. 968, dated 10.7.2007 (w.e.f. 24.5.2005).]

- Two rupees per bulk litre.

(iii)

that the labels of each variety of [sticker in respect of each variety of]

[Substituted 'Indian Made Foreign Liquor' by Notification No. G.O.Ms. No. 968, dated 10.7.2007 (w.e.f. 24.5.2005).]

sought to be imported by the applicant are those approved by the Commissioner.

(2)

The Prohibition and Excise Officer especially authorized by the Commissioner under sub-rule 1(a) shall be competent to issue the import permit under his signature and seal.

6.

The form of Import permit and dispatch of its copies.

- The import permit shall be issued in Form L-2 bearing a machine number in one series for "each Distillery separately", after making five copies thereof. The first copy of the permit shall be kept in the record of the "authorised officer" issuing the permit; the second copy shall be sent by post to the Excise Authority of the State from where the "Indian Liquor" and Foreign Liquor is to be imported or to the Collector of Customs in case the import is from abroad, the third copy shall be handed over to the importer or the person authorised by him to receive it and the fourth copy shall be sent to the Prohibition and Excise Superintendent having jurisdiction over the place to which the Indian Liquor and Foreign Liquor is to be imported, and the fifth copy to the Exporting unit.

7.

Intimation on arrival of consignment.

(1)

Immediately after the consignment covered by the import permit is received, the permit holder shall send intimation in Form L-3 to the Prohibition and Excise Superintendent, the officer authorised by the Commissioner. This intimation shall be enclosed with an original challan of remittance of cost of Excise Adhesive Labels, at the rate, as notified by the Commissioner of Excise from time to time.

(2)

On receipt of such intimation and its enclosure, the Prohibition and Excise Superintendent shall assign verification of

imported consignment and affixture of Excise Adhesive labels to an Prohibition and Excise Officer, not below the rank of Prohibition and Excise Sub-Inspector, while providing him such labels. The verifying Officer shall having satisfied himself that the entries of the permits and the available consignment tally each other, arrange affixture of the Excise Adhesive Labels in his presence on the bottles of the consignment and issue certificate of verification under the intimation to the Prohibition and Excise Superintendent concerned.

(3)

Such verification shall be completed within three days of receipt of intimation of arrival of consignment.

Provided that the Prohibition and Excise Officer may for reasons to be recorded in writing and intimated by notice, extend the time for verification upto further period of three days.

8.

Import should be authorised.

- The import of Indian Liquor and Foreign Liquor shall be from and to any particular place or premises and through the route mentioned in the import permit. The Indian Liquor and Foreign Liquor shall not be moved into or partly unloaded at any other place or premises or other than at the place mentioned in the import permit.

(2)

If the permit holder has more than one licensed premises separate import permits shall be obtained therefor.

9.

(1)

The Indian Liquor or Foreign Liquor covered by the import permit shall be brought to its destination within the period of validity and permit holder shall send the intimation of arrival of Indian Liquor or Foreign Liquor to the Prohibition and Excise Superintendent of the destination under Rule 7 of these Rules and obtain acknowledgement.

(2)

Where it is not possible for the holder of the permit to import Indian Liquor and Foreign Liquor within the validity period specified in the permit for reasons beyond the control of the permit holder, he shall apply to the "authorized officer" for, extension of the period of validity of the permit three days in advance of the expiry of the validity in t he said permit specifying the reasons necessitating such extension together with the unutilized import permit in original and a Certificate from the Officer of the Exporting Distillers/Brewery that no Indian Liquor/Beer has been dispatched from the Distillery/Brewery against such import permit.

(3)

On receipt of application under sub-rule (2) the Prohibition and Excise Superintendent may, after such enquiry as he may consider necessary and, on being satisfied that Indian Liquor/Beer has not been brought against the said permit, extend the validity of the import permit for a reasonable period.

(3-A) Where the Indian Liquor/Foreign Liquor dispatched by the exporting Distillery/Brewery within the validity period of Import permit and reached the Andhra Pradesh State Border check post of Prohibition and Excise Department within the validity period of the permit but reached at the destination after expiry of the validity of the permit for the reasons beyond the control of the permit holder, he shall apply to the Commissioner of Prohibition and Excise for revalidation of the permit explaining the reasons for delay through the Excise Supervisory Officer at the unit of A.P.B.C.L. The Commissioner of Prohibition and Excise will revalidate the permit without forfeiting the countervailing duty and the import fee on being satisfied with the reasons put forth by the permit holders. Otherwise the C.V.D. and import Fee are liable for forfeiture.

(4)

Where it is established that it is not possible to import Indian Liquor and Foreign Liquor specified in the import permit for the reasons beyond the control of the holder of the import permit, the authorised Officer may issue Revised Import Permit specifying the validity period by changing the brand, or Brewery/Distillery, as the case maybe, against the countervailing duty and import fee already paid after collecting differential duty and import fee, if any, provided the application for such Revised import permit is made by the holder of the permit three days in advance of the expiry of the validity of the import specifying the reasons necessitating such Revised Import Permit together with the unutilized Import permit in original and a certificate to the effect from the officer of the Exporting Distillery/Brewery that no Indian Liquor or Foreign Liquor has been dispatched from the Distillery/Brewery against the said import permit.

(5)

Where the import of Indian Liquor or Foreign Liquor is not made within the validity of the import permit or within the

extended period of the permit under sub-rule (3), or Revised Import Permit obtained under sub-rule (4) the countervailing duty and the import fee paid shall accrue to the Government on expiry of the validity specified in the import permit.

(6)

The countervailing duty and the import fee once paid shall not be refunded in any case.

Export Permit

10.

Application for an export permit.

(1)

Indian Liquor shall be permitted to be exported in bottles affixed with only those labels which have been approved by the Commissioner of Excise in accordance with these rules.

(2)

Manufacturers of Indian Liquor or Breweries within the State shall be eligible to apply for approval of such labels under these rules. The application shall be in Form L-4(A) duly affixed with Court fee stamp of the requisite value as per provisions of the Indian Stamp Act, 1899 and shall be enclosed with fifty copies of each variety of label and a challan of remittance of a fee of Rs. 2,00,000/- in respect of brands of Indian Liquor whose basic price is upto Rs. 700/- and Rs. 50,000/- (Rupees Fifty thousand only) in respect of brands of Indian Liquor whose basic price is above Rs. 700/- for each variety of label sought to be approved, under appropriate head of account at any Government Treasury in the State. In case of Beer the fee so payable shall be Rs. 2,00,000/- for each variety of label. The applicant should also get the label re-approved for each excise year by paying a fee of Rs. 2,00,000/- in respect of brands of Indian Liquor whose basic price is upto Rs. 700/- and Rs. 50,000/- (Rupees Fifty thousand only) in respect of brands of Indian Liquor whose basic price is above Rs. 700/- for each variety of the label. In case of Beer the fee so payable for re-approval shall be Rs. 2,00,000/- for each variety of label. The format of the label submitted for such approval shall contain the following:

(a)

Name and address of the manufacturer

(b)

Batch No. Month and Year of manufacture

(c)

Net contents

(d)

Proof strength

(e)

Kind of liquor

(f)

Inscription "Not for sale in Andhra Pradesh"

(g)

Name and address of person doing rectification, blending, compounding, reduction, flavouring, colouring, bottling and the like if such person is other than the manufacturer.

Provided that the label fee once remitted shall not be refunded or adjusted for any reason including non-issue of export permit, when once the label was duly approved and registered.

Provided further that in the case of export of Indian Liquor to Canteen Stores Department each variety of Label shall be approved separately after collecting a non-refundable fee of Rs. 2,00,000/- in respect of Indian Liquor brands whose basic price is upto Rs. 700/- or of Rs. 50,000/- in respect of brands of Indian Liquor whose basic price is above Rs. 700/-. In case of Beer the fee so payable shall be Rs. 2,00,000/- for each variety of label sought to be approved. Provided further that the label approval fee shall be Rs. 10,000/- in the case of wine, either Grape-based or other fruit-based which should not contain more than 42% proof spirit. The label shall be re-approved for each Excise year after collecting the same fee applicable for approval.

(3)

The Commissioner of Prohibition and Excise, on receipt of such application after causing an enquiry if necessary and on being satisfied that there is no objection to approve the label and that the conditions laid down in sub-rule (2) of Rule 10 have been fulfilled, may approve the label in Form L-4B. After approval, one copy shall be returned to the applicant and

one copy to the Andhra Pradesh Beverages Corporation Limited and the other shall be retained for further use by the Commissioner of Prohibition and Excise in his office. However, the approval in Form L-4B does not by itself entitle any intending exporter to export liquor or beer to the other States without following the other conditions laid down regarding the issue of Export Permits. The export shall be done only through the Andhra Pradesh Beverages Corporation Limited which has been vested with exclusive privilege of export.

(4)

Any holder of D2 licence or B2 licence for manufacture of Indian Liquor or Beer as the case may be desiring to export Indian Liquor and Beer outside the State from his licensed premises, shall apply to the Commissioner through the Andhra Pradesh Beverages Corporation Limited for granting the issue of an export permit in Form L-4 and shall bear a Court fee stamp of the requisite value as per the provisions of Indian Stamp Act, 1889. The application shall be accompanied by an import permit granted by the Excise authority of the State to which the liquor has to be exported.

11.

Issue of an export permit.

- On receipt of an application in Form L-4 the Commissioner of Prohibition and Excise may after such enquiry as he may consider necessary and on being satisfied that there is no objection to issue the export permit applied for, issue the permit, subject to the following conditions, namely:-

(1)

That the applicant has paid and produced the challan in original in token of having credited into the Government Treasury the excise duty at the rates in force for the Indian Liquor proposed to be exported: or that he has furnished a suitable bank guarantee from a Scheduled Bank situated in Andhra Pradesh State preferably at the place where the guarantee has to be rendered covering the entire excise revenue due on the consignment, to the satisfaction of the authority competent to grant such permit.

(2)

That the applicant has paid and produced the original challan in token of having credited into the Government Treasury export fee at the following rates :-

(i)

Beer, Cider, Ale Stout, Porter or other

Fermented liquor usually made from malt or foreign liquor,

Rupees two per bulk litre

(ii)

Any other Indian liquors,

Rupees two per bulk litre

(iii)

Malt, Spirit/Grape Spirit

Rupees two per bulk litre

11A.

Furnishing of verification report.

- The exporter shall obtain a verification report from the Prohibition and Excise officer at the destination of the consignment and furnish it to the authority who issued the export permit, within twenty-one days after expiry of the validity of the export permit, failing which the excise duty paid, shall accrue to the Government or the Bank guarantee furnished shall be invoked and encashed amount adjusted towards Government revenue. Now new permit shall be issued until verification reports for the previous consignments are furnished.

11B.

If the Officer-in-charge of the importing State makes a report of short receipt in the consignment in his verification report, the export permit issuing authorities of exporting State shall collect Excise Duty at the prevailing rate on short receipt of consignment. If the duty is not paid within three days the same may be collected by invoking the Bank Guarantee before issuing fresh permit.

12.

Form of Export permit and despatch of copies.

(1)

The export permit shall be issued by the Commissioner of Prohibition and Excise in Form L-5 bearing a machine number

in one series for the whole of the State, after making five copies thereof.

(2)

The first copy of the permit shall be kept in the record of the "Office of the Commissioner of Prohibition and Excise" the second copy of the export permit shall be sent by post to the excise authority of the State to which the Indian liquor has to be exported, the third copy shall be handed over to the applicant and the fourth copy shall be sent to the Prohibition and Excise Officer In-charge of the distillery or Brewery or the place within whose jurisdiction the licensed premises of the applicant is situated and the fifth copy shall be sent to the Andhra Pradesh Beverages Corporation Limited"

(3)

The applicant shall after paying the export fee and the excise duty or furnishing the bank guarantee in lieu of the excise duty and obtaining the export permit in Form L-5 shall apply to the Prohibition and Excise Officer to whom the fourth copy of the permit has been sent through the Andhra Pradesh Beverages Corporation Limited to issue the export pass in Form L-6.

13.

Export should be as authorised.

- The export of liquor shall be from and to any particular place or premises and through the route mentioned in the export permit. The consignment of liquor shall not be disposed of in transit or exported otherwise than authorized in the export permit. If the permit holder has to export consignments at different places separate export permits shall be obtained therefor.

Transport Permit

14.

Occasion for transport permit.

- The Transport permit may be issued authorizing movement of Indian Liquor and Foreign Liquor within the State in the following cases namely: -

(a)

from one unit of the Andhra Pradesh Beverages Corporation Limited to another unit of the Andhra Pradesh Beverages Corporation Limited;

(b)

from the Andhra Pradesh Beverages Corporation Limited to Military Canteen Stores licence in Form CS-3.

(c)

from the licenced premises of Military Canteen Stores in Form CS-3 to the licensed premises of Military Canteen licences in Form CS-1 and CS-2.

(d)

from units of the Andhra Pradesh Beverages Corporation Limited to the licenced premises of Licences in Forms A-4 or 2-B or C-I or licenced premises of EP-1 or licenced premises of TD-1 and TD-2 or SW-1

(e)

from the Distilleiy/Brewery to the Andhra Pradesh Beverages Corporation Limited Units.

(f)

From any of the licensed premises permitted to sell IL & FL under the Act to any of the units of APBCL or from any of the units of APBCL to a Distillery/Brewery licensed under the Act.

(2)

The transport permit may be issued authorizing through transport of Indian Liquor, Foreign Liquor and Beer.

15.

Application for transport permit.

(1)

The Andhra Pradesh Beverages Corporation Limited desiring to transport Indian Liquor and Foreign Liquor from Distillery/Brewery to their units or from one unit to other unit, shall apply: -

(a)

in case both the units are in the same District to the Prohibition and Excise Superintendent of that District or a Prohibition and Excise Officer authorized by the Commissioner of Prohibition and Excise

(b)

in case the units are in different Districts, to the Prohibition and Excise Superintendent of the District from which the

Indian Liquor and Foreign Liquor is transported or a Prohibition and Excise Officer authorised by the Commissioner of Prohibition and Excise from which the liquor is transported.

(c)

in case transport is from a unit of the Andhra Pradesh Beverages Corporation Limited to licenced premises in Form A-4 (By shop), 2-B (By Bar), C-I (Club) and CS-3 (Military Canteen Stores) TD-1 (In house), TD-2 (Beer Pub), EP-1 and SW-1 premises, to the Prohibition and Excise Superintendent of the District or a Prohibition and Excise Officer authorized by the Commissioner of Prohibition and Excise

(2)

The application shall be in Form L-7 and shall bear a court fee stamp of the requisite value as per the Indian Stamp Act, 1899.

(3)

(a)

in case of "through transport permit", application shall be made to the Commissioner of Prohibition and Excise, Andhra Pradesh

(b)

the application under clause (a) shall be in Form L-7(B) and shall bear a Court Fee Stamp of "the requisite value as per the Indian Stamp Act, 1899".

16.

Issue of permit.

(1)

Any officer not below the rank of an Assistant Prohibition and Excise Superintendent authorized by the Commissioner of Prohibition and Excise may, after making such enquiry as he may consider necessary and on being satisfied that the excise duty on the Indian liquor/Foreign liquor to be transported has been paid, issue a transport permit for transport of the liquor in Form L-8 bearing machine numbers in one series for the whole State after making copies thereof. The original of the transport permit shall be kept in the record of the Office of the Prohibition and Excise Superintendent. The duplicate shall be sent by post to the Prohibition and Excise Superintendent of the district to which the liquor is to be transported, in case the licensed premises are in different districts. The triplicate shall be handed over to the applicant or the person authorised by him to transport it. The quadruplicate shall be sent to the Prohibition and Excise Officer having jurisdiction over the place to which the liquor is to be transported; and the quintuplicate shall be sent to the Assistant Commissioner of Prohibition and Excise (Enforcement) having jurisdiction over the place to which the liquor is being transported.

(2)

Where the transport is from Distillery or Brewery, to the Andhra Pradesh Beverages Corporation Limited or premises of the Canteen Stores Licence in Form CS-3. the officer incharge shall issue a distillery or brewery pass on prepayment of excise duty in case the Indian Liquor is released for consumption within the State. Every such pass shall be deemed as a transport permit for the purpose of the rules.

(3)

A Prohibition and Excise Officer authorized by the Commissioner of Prohibition and Excise after making such enquiry as he may considered necessary and on being satisfied that the Excise Duty on the Indian Liquor and Foreign Liquor to be transported has been paid, may issue a transport permit in Form L-8 permitting transport of Indian Liquor and Foreign Liquor from the units of APBCL to the licensed premises in Form A-4, 2-B, CS-3, C-I, TD-1, TD-2, EP-1 and SW-1.

(4)

Every applicant for a transport permit will ensure that in respect of transport permit already received by him during the week ending with Saturday to Friday, submits a declaration and return in Form L-7(A) so as to reach the Prohibition and Excise Superintendent and Prohibition and Excise Officer authorized by the Commissioner on the following Monday. The Prohibition and Excise Superintendent/a Prohibition and Excise Officer authorized by the Commissioner shall be competent to reject issuing further transport permits if the dealer fails to furnish the declaration and Statement in Form L-7(a) in respect of transport permits received by him earlier within the stipulated time."

(4-A) The consignment of Indian Liquor shall correspond with the entries in the transport permit and any variation shall render the transport as without permit. In case, for any reason the description of the IL & FL and the the quantity mentioned in the transport permit issued, cannot be consigned, the transport permit shall be surrendered un-utilized to

the Issuing Authority within 24 hours of the expiry of its validity.

(5)

(i)

In case of through transport of Indian Liquor/Foreign Liquor and Beer, the Commissioner of Prohibition and Excise may after making such enquiry as he may consider necessary and on being satisfied that the movement the liquor/beer is not in contravention of any law for the time being in force and that it will not be unloaded within the Andhra Pradesh State, issue a permit for transport of the liquor/beer through the Andhra Pradesh State, in Form L-8(A), bearing machine number in one series after making copies thereof. The original of such permit shall be retained as office copy. Duplicate, Triplicate and quadruplicate shall be made over to the applicant. The transporter shall surrender the triplicate and quadruplicate to the concerned authority at the check posts of entry and exit respectively to the State of Andhra Pradesh and obtain endorsements in the duplicate copy to that effect.

(ii)

Non-compliance of the provisions of clause () or the conditions laid down in the through transport permit, shall disqualify the transporter for grant of through transport permit in future. The transporter shall also be liable for penalty under the provisions of the Act.

17.

Transport permit holder to give intimation of the arrival of the consignment.

- Immediately after the consignment covered by the transport permit is received the transport permit holder shall initiate in Form L-9 to the Prohibition and Excise Officer having jurisdiction of the receipt of the consignment.

18.

Transport should be authorized.

(1)

The transport of Indian Liquor shall be from and to any particular place or premises and through the route mentioned in the transport permit. The Indian liquor shall not be moved into partly unloaded at any other place or premises other than that mentioned in the transport permit.

(2)

If the permit holder has more than one licensed premises separate transport permit shall be obtained therefor.

(3)

The number of vehicle by which the Indian Liquor - Foreign Liquor consignment is intended to be transported and also the date and time of departure of the vehicle shall be intimated to the concerned Prohibition and Excise Officer having jurisdiction over the area in writing by the consignor, in Form L-10(A) at-least one hour before the vehicle actually moves with the consignment.

(4)

The copy of the transport permit intended to the consignee issued under Rule 18 of the above said Rules shall accompany the consignment and without this, the consignment of Indian Liquor shall not move.

(5)

The transport permit shall also contain the number of the vehicles by which it is transported and the way bill number under which it is transported with date of transport, time of departure etc. A consignment transported under a permit not containing these details will be treated as unauthorized movement.

(6)

The A.P. Beverages Corporation Limited should also submit a return in Form L-10(B) of the Prohibition and Excise Superintendent of the District immediately after the consignment of Indian Made Foreign Liquor booked is moved and the return should be sent not later than the next day. A copy of such return shall also be sent to the Prohibition and Excise Superintendent having jurisdiction over the place of destination of the consignment.

(7)

An endorsement on the permit by the local Prohibition and Excise Superintendent or his nominee shall be obtained wherever the vehicle breaks down or the route is to be changed due to natural calamities.

(8)

Where the route of movement of the consignment passes through any check post of the Prohibition and Excise Department or of the Commercial Taxes Department the transporter, shall get the transport permit and way bill stamped at the check-post. Failure to do so shall be treated as unauthorized transport and violation of the conditions of the

transport.

19.

Permit to be cancelled under certain circumstances.

- If any permit has been obtained by misrepresentation or by any other fraudulent means, the permit so obtained is liable to be cancelled and the permit holder is also liable for prosecution.

20.

Permit holders to abide by the provisions of the Act etc.

- Every holder of the permit under these rules shall comply promptly with all orders or directions issued from time to time under the Act, and the rules and orders made thereunder and shall abide by all the conditions of the permit.

21.

Suspension, withdrawal or cancellation of a permit.

- A permit may be suspended, cancelled or withdrawn in accordance with the provisions of Section 31 or 32 of the Act.

22.

[Not printed in the A.P. Gazette.]

23.

Removal of difficulties.

- If there is any doubt or dispute regarding the application or interpretation of any these rules, the decision of the Commissioner thereon shall be final.

Form L-1

[See Rule 4(4)]

Application for an Import Permit

1. Name of the applicant

2. Full address

3. Details of licence held

4. If the applicant is a partnership firm or Company details thereof

5. Purpose for which the permit is applied for

6. Quantity in litres, proof strength, quality or make of each variety forming the consignment

7. Place from which consignment will start

8. Place to which the consignment will reach

9. Route through which the consignment passes and the mode of conveyance by road/canal/rail/air

10. Details of duty if any paid by the applicant, Challan No. and Date and place of remittance in the A.P. (Original challan whether enclosed)

11. Probable time required for transit (number of days)

12. Particulars of authorization or permit from the competent authority relating to permit applied for.....Number and date and issued by whom should be

13. Particulars of the approval of the Commissioner for the labels of each variety of Indian Liquor sought to be imported.

I declare that the particulars given above are true to the best of my knowledge and belief. If at any stage it is found that the particulars are wrong or that I have resorted to fraud, I may be prosecuted.

I have gone through the provisions of the Andhra Pradesh Excise Act. 1968 and the rules made thereunder and I am bound by the provisions.

I agree to pay any duty or fee that is due on the consignment if it is found that it has not been remitted or short remitted.

I shall obey the rules and regulations, in force within the local area through which the consignment passes.

Date

Signature of the Applicant.

Form L-1-A

(See Rule 4(2))

Application for approval of Label to be pasted on the Stocks for Import into Andhra Pradesh

1. Name of the applicant.

2. Full address.

3. Details of licence held.

4. If the applicant is a partnership firm or Company details thereof.

5. Name of the Distillery/Brewery (if the applicant is not the Distillery/Brewery).
6. Name and address of person doing rectification, blending, compounding, reduction, flavoring, colouring, bottling and the like if such person is other than the manufacturer.
7. Full address of Distillery/Brewery.
8. Permission for approval of the label if applied for (mention the brand name).
9. Name of the brand, size of the bottle.
10. Details of payment of the fee for approval of the labels for importing into the State of Andhra Pradesh.
11. Previous approval of same label by the Commissioner of Prohibition and Excise with reference number and date (when submitted for re-approval).

Signature of the Applicant

Form L-1-B

(See Rule 4(3))

I, the Commissioner of Prohibition and Excise, Andhra Pradesh, Hyderabad approve the following label of.....under Rule 4 of Andhra Pradesh Excise (Import, Export and Transport of Indian Liquor and Foreign Liquor-Permits) Rules, 2005

Label to be Affixed Here

This approval is given subject to the following conditions:

1. To Distillery/ Brewery shall maintain and furnish to the Commissioner of Prohibition and Excise the information called for if any from time to time.
2. This approval is liable to be withdrawn in the event of contravention of the provisions of A.P. Excise Act and Rules made thereunder.
3. This approval by itself does not entitle any importer Indian Liquor or Beer into the State of Andhra Pradesh without following the other rules and conditions laid down regarding the issue of import permits.

Commissioner of Prohibition and Excise

Form L-2

(See Rule 6]

(Import permit)

1

Name and address of the licensee

2

Name and address of the person from whom
intoxicants have to be imported

3

Place from which intoxicants have to be imported

4

Route (state whether road, rail, air or
road-cum-rail and important towns and cities on proposed route)

5

Period of the validity of the permit

6

Description of the intoxicants to be imported

Brand ML No.of Case

Strength Bulk Lit.

UP LP Lit

7

Quantity of each kind of intoxicant

8

Alcoholic or other strength of the intoxicants

9

No. and nature of receptacles containing the
intoxicants

10

Purpose for which intoxicants are imported

11

Particulars of countervailing duty paid/
collected

This permit is granted under and subject to the provisions of Andhra Pradesh Excise Act, 1968 and the rules made thereunder authorizing the above import subject to the following conditions:

1. The entire quantity of intoxicants shall be imported in one consignment only and shall not be broken in transit.
2. The licensee shall pay such cost of the excise or other escort, if any as the Prohibition and Excise Superintendent may decide.
3. Before transport of Indian Liquor Beer covered by the import permit commences telegraphic information about the movement of Indian Liquor/Beer should be issued by the Distillery/Brewery (consignor) and the officer-in-charge of Distillery/Brewery to the Additional Commissioner of Andhra Pradesh and to the Prohibition and Excise Superintendent who has issued the import permit.
4. The label should bear the inscription 'for export to Andhra Pradesh'.
5. Import permit should be got entered in variably at all check posts of Government of Andhra Pradesh through which the consignment passes.
6. Import permit must bear on the reverse, the number of Lorry, name of the transporters, invoice number, date and time when the movement of Indian Liquor Beer started.
7. The check post seal must be got affixed on the import permit.
8. The Indian Liquor imported shall be in conformity with the strength of the Indian Liquor prescribed under Rule 42 of the Andhra Pradesh Indian Liquor and Foreign Liquor Rules, 1970.

Form L-3

[See Rule - 7]

Intimation of arrival of consignment

1. Name of the address of the licensee
2. Nature of licence, number and date
3. Nature, number and date of the permit under which the consignment is arriving and the date upto which the permit is valid.

Nature of permit

Issued by whom

Permit No. and date

Date of Expiry of permit

(1)

(2)

(3)

(4)

4. Quantity for which the permit was issued and particulars of Indian Liquor issued.

Kinds of Liquors

Strength

Quantity

Total Litres

Total Bottles

(1)

(2)

(3)(a)

(3)(b)

5. Date and time of arrival of the consignment at the licensed premises.

Signature of the licensee with date.

Certificate of the verifying officer.

Certified that-

I. The consignment has been verified by me on.....(date..... (Place)

II. The seals on the packages of the consignment are intact and agree with the specimen seal (if any damage is noticed details to be given).

III. The full quantity of..... litres covered by the permit have been received and accounted for in the books of accounts of the licensee

IV. The nature, quality and proof strength of the Indian Liquor agreed with the description given in the permit.

Date

Signature Designation

Form L-4

[See Rule 12]

Application for an Export Permit

1. Name of the applicant

2. Full address

3. Details of licence held

4. If the applicant is a partnership firm or Company details thereof

5. Purpose for which the permit is applied for

6. Quantity in litres, proof strength, quality, or make of each variety forming the consignment

7. Place from which consignment will start

8. Place to which the consignment will reach

9. Route through which the consignment passes and the mode of conveyance by road/canal/rail/air

10. Details of duty if any paid by the applicant, Challan No. and Date and place of remittance in the A.P.

(Original challan whether enclosed)

11. Probable time required for transit (number of days)

12. Particulars of authorization or permit from the competent authority relating to permit applied for.....Number and date issued by whom should be stated and the applicant's copy if any should be enclosed.

13. Particulars of the approval of the Commissioner for the labels of each variety of Indian Liquor sought to be exported

I declare that the particulars given above are true to the best of my knowledge and belief. If at any stage it is found that the particulars are wrong or that I have resorted to fraud, I may be prosecuted.

I have gone through the provisions of the Andhra Pradesh Excise Act, 1968 and the rules made there -under and I am bound by the provisions.

I agree to pay any duty or fee that is due on the consignment if it is found that it has not been remitted or short remitted.

I shall obey the rules and regulations, in force within the local area through which the consignment passes.

Date

Signature of the Applicant.

Form L-4A

[See Rule 11(2)]

Application for approval of label to be pasted on the Stocks for Export outside Andhra Pradesh

1. Name of the applicant

2. Full Address

3. Details of licence held

4. If the applicant is a partnership firm or Company details thereof

5. Name of the Distillery/Brewery (if the applicant is the Distillery/Brewery)

6. Full address of Distillery/Brewery

7. The permission for approval of the Label is applied for (mention the brand name)

8. Name of the brand, size of the bottle

9. Previous approval of same label by the Commissioner of Prohibition and Excise with reference number and date (when submitted for re-approved)

Signature of the Applicant

Form L-4B

[See Rule 11(3)]

I, the Commissioner of Prohibition and Excise, Andhra Pradesh, Hyderabad approve the following label of under Rule

11 (3) of Andhra Pradesh Excise (Import, Export and Transport of Indian Liquor and Foreign Liquor-Permits) Rules, 2005.

Label To Be Affixed Here

This approval is given subject to the following conditions:

1. Distillery/Brewery shall maintain and furnish to the Commissioner of Prohibition and Excise the information called for if any from time to time.
2. This approval is liable to be withdrawn in the event of contravention of the provisions of A.P. Excise Act and Rules made thereunder.
3. This approval by itself does not entitle any intending exporter to export Indian Liquor or Beer to the other States without following the other rules and the conditions laid down regarding the issue of export permits.

Commissioner of Prohibition and Excise

Form L-5

[See Rule 12]

Export Permit

(in Four parts/quadruplicate)

Board's Cr. No.

Ref.: Application for Export dated.....from.....Shri.....

1. By virtue of powers conferred on me by Rules Nos.....of the Andhra Pradesh Excise (Import, Export and Transport of Indian Liquor and Foreign Liquor - Permits) Rules, 2005, I Shri.....the Commissioner of Prohibition and Excise of the State of Andhra Pradesh hereby authorize Sri.....Address holding licence in favour of vendor of Indian Liquor, to export from.....(Place, State) to.....(Place, State) the following quantity of Indian Liquor, Foreign Liquor or Beer.

2. The Exporter has paid the following duties and fees, (vide Challan No..... Date.....)

3. Details to be exported category-wise

Category or type Indian Liquor

Quantity of litres

Quantity in litres nip/pint/ bottles

Make Co.

Strength

(1)

(2)

(3)

(4)

(5)

4. The movement is to be in the following number of consignment by Rail/Road/Lorry

5. The validity of this order is from to This order is only an authorization and not a transport permit. This authorization should be surrendered in original at the place of issue of pass with the officer authorized to issue and a separate transport pass obtained.

6. Each consignment should be accompanied by a pass issued at the place of dispatch or issue of consignment.

7. The exporter shall be liable to pay duty or fee if found leviable and follow the conditions of the grant to export permit

8. The exporter should arrange to get a "Receipt Report" from the local Excise Officer at the place of receipt of stores.

9. The licensee shall be prosecuted if he is found to misuse this authorization letter. Given under seal of.....on.....this.....the day of.20

Commissioner of Prohibition and Excise

Certificate to be furnished by the Excise Officer of the State from which the Indian Liquor Beer is imported

Certified that-

(i)

the consignment has been verified by me.....on.....at.....dateplace :.....

(ii)

the seals on the packages of the consignment are intact and agree with the specimen seal (if any damage is noticed details to be given)

No. of bottle

(iii)

the full quantity of.....litres covered by the permit have been received and accounted for in the losses of accounts of the licensee in the State, and

(iv)

the nature, quantity and proof strength of Indian Liquor agreed with the description in the permit.

DateSeal

SignatureDesignationHead Quarters

Form L-6

[See Rule 13(3)]

Pass

(to be issued in triplicate)

Original

(To be issued to accompany the consignment under Export)

Permit No.....Date.....

1. Name of the Exporter and full address
2. Details of licence held by him
3. Authority of the order of export permit under which the pass is issued
4. Place of dispatch with date and time
5. Place of destination
6. Probable time and date of arrival of consignment at the destination
7. Quantity and quality of Indian Liquor, Beer issued in Litres (details of)
8. Strength make, Company's name
9. Route to be followed
10. Period of validity of the pass from to.....

Authority issuing pass with Seal and date of issue

Note 1. - A separate pass must be issued for each consignment even in case the consignments are moving under the same transport permit

2. Pass shall be issued only on the surrender of the transport permit.

Form L-7

[See Rule - 16]

Application for Transport Permit

1. Name of the applicant,
2. Full address
3. Details of licence held
4. If the applicant is a partnership firm or company details thereof,
5. Purpose for which the permit is applied for
6. Quantity in litres, proof strength, quality or make of each variety forming the consignment
7. Place from which the consignment will start;
8. Place to which the consignment will reach
9. Route through which the consignment passes, and the mode of conveyance by road/ canal/rail/air
10. Details of duty, if any paid by the applicant, Challan No. and date and address of remittance in the Andhra Pradesh (Original Challan whether enclosed)
11. Probable time required for transit (number of days)
12. Particulars of authorization or permit from the competent authority relating to permit applied for, Number and the date and issued by whom should be stated and the applicant's copy, if any should be enclosed;

I declare that the particulars given above are true to the best of my knowledge and belief. I declare that the stocks for which this application for transport of liquor is made, are actually available in the APBCL/authorized godown at the time of making the application.

I agree to pay any duty or fee that is due on consignment, if it is found that it has not been remitted or short remitted.

I shall obey the rules and regulations in force within the local area through which the consignment passes.

Date
Signature of the Applicant,(in quadruplicate)(in four parts)
Form L-7A
[See Rule 17(3)]
I declare that the transport permit issued to me for the period Saturday the.....to Friday the.....have been utilized/not utilized by me and were already surrendered to the Prohibition and Excise Superintendent.
Transport Permit No.
Date of Issue
Quantity for which transport permit issued (in cases)
Date of Utilization
Quantity actually released
If not utilized Date of surrender In the office of Excise Superintendent
Beer
Q
P
N
Beer
Q
P
N
(1)
(2)
(3)
(4)
(5)
(6)
(7)
(8)
(9)
(10)
(11)
(12)
Signature of the Applicant
Form L-7B
[Under Rule 17(4)]
Application for permit for through Transport
Date
1. Name of the applicant and his agent if any
2. Full Address
3. (a) Import permit No. and date under which consignment is moving
(b)
Validity period
(c)
Issued by whom
(d)
Origin of the consignment
4. (a) Export permit No. and date under which consignment is moving
(b)
Validity period

(c)

Issued by whom

(d)

Destination of the consignment

5. Name of the Importer

6. Name of the Exporter

7. Details of route through which the consignment passes while in transit in the State of A.P. from the point of entering the border of A.P. State (state important towns and cities on the route)

8. Mode(s) conveyance to be used for transport through the State of Andhra Pradesh together with particulars of transshipment if any (state whether Road, Rail, Air or Road-cum-Rail)

9. Description of Indian Liquor / Beer

Kind of Indian Liquor Beer

Brand

M.L.

Strength in U.P.

No. of Cases

Bulk liters

L.P. L.T.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

10. Validity of the transport required for transporting the consignment through Andhra Pradesh

I declare that the particulars given above are true to the best of my knowledge and belief.

I shall abide by the provisions of the A.P. Excise Act and the Rules made thereunder as amended from time to time and all executive instructions issued by the Commissioner of Prohibition and Excise.

Signature of the Applicant

Form L-8

[See Rule 17]

Transport Permit

Part-I

Original

(to be retained in the issuing office)

1. Name of the transporter

2. Address

3. Details of licenses held by him

4. Authority or order under which this permit is issued, full details

5. Quantity in litres to be transported quarts/pints/nips/ bottles in litres with strength, make company's name etc.,

6. Place of dispatch

7. Place of destination

8. Details of route

9. Valid of the permit, from to _____

Authority issuing permit, With seal and date of issue

Note. - 1. Copies to be sent to the Deputy Commissioner of Prohibition and Excise (of the place of issue and destination)

2. The validity shall not normally exceed 7 days for movement within the State.

3. The consignment should not be issued unless original is surrendered on surrender of the original, a pass should be issued.

4. After verification of consignment the Excise Officer shall note his remarks behind Part-IV (Quadruplicate) of the permit

and report result of verification to the authority issuing the permit.

5. Pass should accompany the consignment.

Form L-8

[See Rule 17]

Transport Permit

Part-II

Duplicate

(To be sent to Local Excise Officer of place of dispatch)

1. Name of the transporter
2. Address
3. Details of licenses held by him
4. Authority or order under which this permit is issued (full details)
5. Quantity in litres to be transported quarts/pints/nips/ bottles in litres with strength, make company's name etc.,
6. Place of dispatch
7. Place of destination
8. Details of route
9. Valid of the permit, from to _____

Authority issuing permit, With seal and date of issue

Note. - 1. Copies to be sent to the Deputy Commissioner of Prohibition and Excise (of the place of issue and destination)

2. The validity shall not normally exceed 7 days for movement within the State.

3. The consignment should not be issued unless original is surrendered on surrender of the original, a pass should be issued.

4. After verification of consignment the Excise Officer shall note his remarks behind Part-IV (Quadruplicate) of the permit and report result of verification to the authority issuing the permit.

5. Pass should accompany the consignment.

quadruplicate(In four parts)

Form L-8

[See Rule 17]]

Transport Permit

Part-III

Triplicate

(to be issued to the Applicant)

1. Name of the transporter
2. Address
3. Details of licenses held by him
4. Authority or order under which this permit is issued (full details)
5. Quantity in litres to be transported quarts/pints/nips/ bottles in litres with strength, make company's name etc.,
6. Place of dispatch
7. Place of destination
8. Details of route
9. Valid of the permit, from.....to.....

Authority issuing permit. With seal and date of issue

Note. - 1. Copies to be sent to the Deputy Commissioner of Prohibition and Excise (of the place of issue and destination)

2. The validity shall not normally exceed 7 days for movement within the State.

3. The consignment should not be issued unless original is surrendered on surrender of the original, a pass should be issued.

4. After verification of consignment the Excise Officer shall note his remarks behind Part-IV (Quadruplicate) of the permit and report result of verification to the authority issuing the permit.

5. Pass should accompany the consignment.

In quadruplicate(In four parts)

Form I L-8

[See Rule 17]]

Transport Permit

Part-IV

Quadruplicate

(to be sent to the local Excise Officer of the place of destination)

1. Name of the transporter
2. Address
3. Details of licenses held by him
4. Authority or order under which this permit is issued (full details)
5. Quantity in litres to be transported quarts/pints/nips/ bottles in litres with strength, make company's name etc.,
6. Place of dispatch
7. Place of destination
8. Details of route
9. Valid of the permit, from to.....

Authority issuing permit, With seal and date of issue

Note. - 1. Copies to be sent to the Deputy Commissioner of Prohibition and Excise (of the place of issue and destination)

2. The validity shall not normally exceed 7 days for movement within the State.
3. The consignment should not be issued unless original is surrendered on surrender of the original, a pass should be issued.
4. After verification of consignment the Excise Officer shall note his remarks behind Part-IV (Quadruplicate) of the permit and report result of verification to the authority issuing the permit.
5. Pass should accompany the consignment.

Form L-8(A)

[Under Rule 17(4)]

Permit for through Transport

Date.....

1. Name of the Transporter, and his agent if any
2. Full address
3. (a) Import permit No. and date under which consignment is moving
(b)

Validity period

(c)

Issued by whom

(d)

Origin of the consignment

4. (a) Export permit No. and date under which consignment is moving
(b)

Issued by whom

(c)

Destination of the consignment

5. Name of the Importer

6. Name of the Exporter

7. Details of route through which the consignment shall pass in the State from the point of entering the border of A.P. State to the point of leaving the border of A.P.

State (state important towns and cities on the route)

8. Mode(s) conveyance to be used for transport through the State of Andhra Pradesh together with particulars of transshipment if any (state whether Road, Rail, Air or Road-cum-Rail)

9. Registration No. of the Vehicle(s) to be recorded at the check-post of entry in all copies.

10. Description of Indian Liquor/Beer

Kind of Indian Liquor Beer

Brand

M.L.

Strength in U.P.

No. of Cases

Bulk liters

L.P. L.T.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

11. Period of the validity of permit from.....to.....

The permit is granted under and subject to the provision of the A.P. Excise Act, 1968 and the Rules made thereunder authorizing the above transport subject to the following conditions.

I. The IML/Beer shall not be consumed, sold or in any manner used or allowed to be consumed, sold or used during transit through the State of Andhra Pradesh.

II. The entire quantity of IML/Beer shall be transported in one consignment only and shall not be broken in transit.

III. The duplicate through Transport Permit shall be produced and got stamped by the concerned authority at the check-posts of entry and exit to the State of Andhra Pradesh and also at such place specified in the permit enroute, while the triplicate and quadruplicate of this permit should be surrendered by the holder at the check posts of entry and exit respectively.

IV. The movement of consignment shall not be deviated from the route specified in the permit.

V. The permit holder shall bear the charges for the escort if any.

VI. Duplicate through Transport Permit, duly filled in and stamped at entry and exit check posts, shall be produced before the Commissioner within (5) days of the expiry of the validity of this permit or while applying for subsequent through Transport Permit whichever is later.

VII. The consignment shall exit within 120 hours of its entry into the State of Andhra Pradesh or the validity of this permit, whichever is earlier.

VIII. Any 'break' down of the transport vehicle during journey in the State of Andhra Pradesh shall be reported immediately to the local excise officer and endorsement to that effect shall be obtained on the duplicate permit.

Acknowledgment of Report and Receipt of Copy

(on duplicate only)

Entry Check Post

Exit Check Post

Consignment reported at.....hours consignment reported at hours on.....(date) and registered at S.No.

() (date) and registered at S. No. () of Check-post Register Triplicate through of check-post Register Quadruplicate/ Transport permit received.

Permit received

through transport

Seal

Signature and Destination

Seal

Signature and Destination

Commissioner of Proh. & Excise, Andhra

Pradesh

To

The Applicant

Copies to

I. The Joint Commissioner of Proh. & Excise (Enft.) A.P., Hyd.,

II. The Asst. Commissioner(s) of Excise (Enft.) of Zones through which the consignment passes.

III. The Excise Superintendent(s) of the District(s) through which the above consignment passes.

Form L-9

[See Rule 18]

Intimation of arrival of consignment

1. Name and address of the Licensee

2. Nature of the licence, number and date

3. Nature, number and date of the permit Under which the consignment is arriving

And the date upto which the permit is valid

Name of permit

Issued by whom

Permit No. and date

Date of Expiry of permit

(1)

(2)

(3)

(4)

4. Quantity for which the permit was issued and particulars of Indian Liquor issued.

Kinds of Liquors

Strength

Quantity

Total Litres

Total Bottles

(1)

(2)

(3)(a)

(3)(b)

5. Date and time of arrival of consignment at the licensed premises.

Form L-10(A)

[See Rule 19(3)]

Sl. No.

Name of the Licensee

Goods transported

T.P.No. and Date

Vehicle No. In which the Goods are Transported

Date and time of departure (Anticipated)

Name and Address of Consignee

Brand Q P N

(1)

(2)

(3) (4) (5) (6)

(7)

(8)

(9)

(10)

Signature of the Applicant

Form L- 10(B)

[See Rule 19(6)]

Sl. No.

Name of the Licensee

Goods transported

T.P.No. and Date

Vehicle No. In which the Goods are Transported

Date and time of departure (Anticipated)

Brand Q P N

(1)

(2)

(3) (4) (5) (6)

(7)

(8)

(9)

Signature of the Applicant

Related AI tags, queries and research notes

Translation